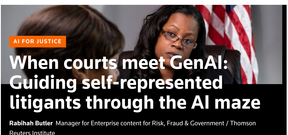

AI FOR JUSTICE

When courts meet GenAI: Guiding self-represented litigants through the AI maze

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Courts are exploring how AI might aid self-represented litigants and are providing guidance without endorsing specific tools, an approach that acknowledges AI's potential benefits as well as its limitations in the legal system

Key insights:

- ***Considering courts' approach*** — Although many courts do not interact with litigants prior to filings, courts can explore how to help court staff discuss AI use with litigants.
- ***Risk of generic AI tools*** — AI use in legal settings can't be simply categorized as safe or risky; jurisdiction, timing, and procedure are vital factors, making generic AI tools unreliable for court-specific needs.
- ***Specialty AI tools require testing*** — Purpose-built court AI tools offer a safer alternative for litigants, yet these require development and extensive testing.

Self-represented litigants have always pieced together legal help from whatever sources they can access. Now that AI is part of that mix, courts are working to help people use this advanced technology responsibly without implying an endorsement of any particular tool or even the use of AI.

Many litigants cannot afford an attorney; others may distrust the representation they have or may not know where to begin. In any case, people need a meaningful way to interact with the legal system. Used carefully and responsibly, AI can support access to justice by helping **self-represented litigants** understand their options, organize information, and draft documents, while still requiring litigants to verify their information and consult official court rules and resources.

These issues were discussed in a recent webinar, ***AI tools, self-represented litigants & the future of access to justice***, hosted by **the National Center of State Courts and Thomson Reuters Institute AI Policy Consortium**. The panel explored the potential benefits of AI for access to justice and the operational challenges of integrating AI into public-facing guidance for litigants.

The problem with "Just ask AI"

Angela Tripp of the Legal Services Corporation noted that people handling legal matters on their own have long relied on a mix of resources, "some of which were designed for that purpose, and some of which were not." AI is simply a new tool in that environment, she added. The primary challenge is that court processes are rule-based and time-sensitive; and a mistake can mean missing a deadline, submitting the wrong document, or misunderstanding a requirement that affects the case.

Access to justice also requires more than just access to information in general. Court users need information that is relevant, complete, accurate, and up to date. Generic AI systems, such as most public-facing tools, are trained on broad internet text may not reliably deliver that level of specificity for a particular court, case type, or stage of a proceeding. In these cases, jurisdiction, timing, and procedure all matter. Unfortunately, AI can omit key steps or emphasize the wrong issues, and self-represented litigants may not have the legal experience to recognize what is missing.

At the same time, AI offers several potential benefits to self-represented litigants. It can explain concepts in plain language, help users structure a narrative, and produce a first draft faster than many people can on their own. The challenge is aligning those strengths with the precision that court processes demand.

A strategic pivot: from teaching litigants to equipping staff

In the webinar, Stacey Marz, Administrative Director of the Alaska Court System, described her team's early efforts to give self-represented litigants clear guidance about safer and riskier uses of AI, including examples of how to properly prompt generative AI queries.

The team tried to create *traffic light* categories that would simplify decision-making; however, they found this approach very challenging despite several draft efforts to create useful guidance. Indeed, AI use can shift from low-risk to high-risk depending on context, and it was hard to provide examples without sounding like the court was endorsing a tool or sending people down a path to which the court could not guarantee results.

The group ultimately shifted to a more practical approach — training the people who already help litigants. The new guidance targets public-facing staff such as clerks, librarians, and self-help center workers. Instead of teaching *litigants* how to prompt AI, it equips *staff* to have informed, consistent conversations when litigants bring AI-generated drafts or AI-based questions to the counter.

The framework emphasizes acknowledgment without endorsement. It suggests language such as:

> *"Many people are exploring AI tools right now. I'm happy to talk with you about how they may or may not fit with court requirements."*

From there, staff can explain why court filings require extra caution and direct users to court-specific resources.

This approach also assumes good faith. A flawed filing is often a sincere attempt to comply, and a litigant may not realize that an AI output is incomplete or incorrect.

Purpose-built tools take time

The webinar also discussed how courts also are exploring purpose-built AI tools, including judicial chatbots designed around court procedures and grounded in verified information. Done well, these tools can reduce common problems associated with generic AI systems, such as jurisdiction mismatch, outdated requirements, or fabricated or **hallucinated citations**.

However, building reliable court-facing AI demands significant time and testing. Marz shared Alaska's experience, noting that what the team expected to take three months took more than a year because of extensive refinement and evaluation. The reason is straightforward: Court guidance must be highly accurate, and errors can materially harm someone's legal interests. In fact, even after careful testing, Alaska still included cautionary language, recognizing that no system can guarantee perfect answers in every situation.

The path forward

Legal Services' Tripp highlighted a central risk: Modern AI tools can be clear, confident, and easy to trust, which can lead people to over-rely on them. And courts have to recognize this balance. Courts are not trying to prevent AI use; rather, many are working toward realistic norms that treat AI as a drafting and organizing aid but require litigants to verify claims against official court sources and seek human support when possible.

Marz also emphasized that courts should generally assume filings reflect a litigant's best effort, including in those cases in which AI contributed to confusion. The goal is education and correction rather than punishment, especially for people navigating complex processes without representation.

Some observers describe this moment as an early *AOL phase* of AI, akin to the very early days of the world wide web — widely used, evolving quickly, and uneven in its reliability. That reality makes clear guidance and consistent messaging more important, not less.

This shift among courts from teaching *litigants* to use AI to teaching *court staff and other helpers* how to talk to litigants about AI reflects a practical effort on the part of courts to reduce the risk of harm while expanding access to understandable information.

As is becoming clearer every day, AI can make legal processes feel more navigable by helping self-represented litigants draft, summarize, and prepare; and for courts to realize that value requires clear guardrails, court-specific verification, and careful implementation, especially when a missed detail can change the outcome of a case.

You can find out more about how AI and other advanced technologies are impacting ***best practices in courts and administration*** *here*

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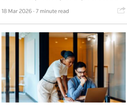

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